

Munna Lal And Ors vs State Of Rajasthan And Anr on 2 May, 2019

Author: G R Moolchandani

Bench: G R Moolchandani

HIGH COURT OF JUDICATURE FOR RAJASTHAN
BENCH AT JAIPUR

S.B. Criminal Miscellaneous (Petition) No. 2663/2012

1. Munna Lal son of Laxmi Narayan
2. Munni Devi wife of Munna Lal
3. Manoj Kumar son of Munna Lal
4. Sanjay son of Munna Lal
5. Naresh son of Bhagwan Das, son-in-law of Munna Lal
All by caste Agrawal, resident of Village Kheragarh, District Agra
(U.P.)

----Petitioner

Versus

1. The State Of Rajasthan
2. Vijay Kumar son of Ramdayal, by caste Mahajan Agrawal,
resident of Village Medi, Police Station
Gangapur City, District Sawai Madhopur (Rajasthan)

Vazeerpur, Tehsil

----Respondent

For Petitioner(s) : Mr. Rajneesh Gupta
For Respondent(s) : Mr. R.C. Choudhary, PP
Mr. L.M. Bhardwaj

HON'BLE MR. JUSTICE G R MOOLCHANDANI

Judgment reserved on :: 01st May 2019
Judgment pronounced on :: 02nd May 2019

Judgment

This miscellaneous petition has been filed against the order dated 09.07.2012 passed by Additional Sessions Judge, Gangapur City, District Sawai Madhopur, dismissing the revision filed by petitioner/s against the order dated 20.07.2007 of Judicial Magistrate (First Class), Gangapur City passed in Criminal Case No. 119/2007, dismissing the negative final report submitted in FIR No. 269/2005 registered with Police Station Vazeerpur, District (2 of 5) [CRLMP-2663/2012] Sawai Madhopur and took cognizance against the petitioner/s for offences under Sections 498, 420, 406 and 120-B of I.P.C.

It has been contended by learned counsel for the petitioner that petitioner has wrongly been saddled, he has not committed any offence, the couple has even reconciled and their marriage is annulled by a mutual divorce petition, sheer role of the petitioner is stated to be of a intermediary in settling the marriage, even the main FIR pertaining to the matrimonial dispute, has been quashed, referring para 7 of the divorce petition it has been argued that the couple had agreed that nothing adverse shall be proceeded with in respect of the questioned FIR No.269/2005, so also there is no reason to proceed with the FIR, it is not tenable in the eye of law since no offence is made out, so the petition be allowed and order/s impugned be quashed.

Learned counsel for the respondent has opposed the contentions raised by learned counsel for the petitioner and has submitted that the revisional court has dealt with the facts thoroughly and the trial court is obliged to observe constitution of the offence at prima facie stage and each and every aspect is not necessary to be dealt with at the time of resorting to cognizance, prima facie evidence is enough to take cognizance, there is no infirmity in the order impugned, petition lacks merit, so it be dismissed.

Heard and perused the material available on the record.

(3 of 5) [CRLMP-2663/2012] Conclusion of FIR No. 269/2005 lodged for the offences punishable under Sections 498, 420, 406 and 120-B of I.P.C. are itself categorical that the dispute between the parties has remained matrimonial and Munna Lal has admittedly remained as intermediary in settling the marriage and known to the complainant.

All the accused persons have been implicated altogether and an additional allegation against Munna, Sanjay and Naresh has also been stated that under the pretext of relationship they procured mustard seed from the father of the complainant Vijay Kumar, costing 2,66,300/-, nothing has been divulged as to on which date the said mustard seeds were given and what was the measurement of the said mustard seeds.

The investigating agency has rightly observed that dispute between the parties has remained mainly of matrimonial in nature and the alleged offence has not been found to have taken place.

It is pertinent to observe that the main dispute between the parties has resolved and a bilateral petition preferred under Section 13-B of Hindu Marriage Act, the marriage of Nitesh Kumari and Vijay Kumar has been annulled by Additional District Judge, Gangapur City vide order dated 04.03.2010 in H.M.A. No. 41/2009.

Perusal of the pleadings mentioned in para 7 of the divorce petition preferred under Section 13-B of Hindu Marriage (4 of 5) [CRLMP-2663/2012] Act, has also got a recital that FIR No. 269/2005 shall not be proceeded with and its verbatim is as under :-

7- ;g fd f}rh; i{k ds firk us tks ,QovkbZovkjo uEcj 269@05 iqfyl Fkkuk cthjiqj esa ntZ
djkbZ gS ml ,QovkbZovkjo esa izFke i{k dh ekrkth Jherh ehuk iRuh Jh jkefuokl
fuoklh vxjxk ds fo:) eqo [kkfjt djok ysaxs rFkk izFke i{k o mlds ekrk firk ds fo:) dksbZ

Hkh dk;Zokgh ugha djsaxsA Obviously this petition has been preferred by the couple Nitesh Kumari and Vijay Kumar son of Ramdayal and the FIR impugned No. 269/2005 has also been lodged by Vijay Kumar son of Ramdayal, ignoring these vitals the court below has faulted in taking cognizance, which has wrongly been upheld by the revisional court, it also transpires from the record that a coordinate bench of this court, while deciding SB Cri. Misc. Petition No. 414/2008 pertaining to FIR No. 131/2005, Police Station Vazeerpur, in Criminal Case No.113/2005 Munna Lal v. State of Rajasthan, has allowed the petition and has set aside the order of cognizance and order dated 13.07.2007.

Father of complainant Vijay Kumar, Shri Ramdayal, while appearing before the trial court, protesting submission of FR, has himself stated that Munnalal was an intermediary and he had been given an amount of Rs.5000/- towards settling the marriage (brokery), as such the parties have disputed owing to the matrimonial discord, which subsequently resolved by annulment of marriage by a mutual divorce because both the sides preferred mutual divorce under Section 13-B of Hindu Marriage Act.

(5 of 5) [CRLMP-2663/2012] In view of the aforesaid order impugned passed by learned trial court dated 20.07.2007 and subsequent order dated 09.07.2012 passed by revisional court, are legally not sustainable.

Resultantly, the petition is allowed and order impugned, coupled with proceedings undertaken thereto are quashed and set aside. Let a copy of the order be sent to concerned trial court for necessary compliance forthwith.

(G R MOOLCHANDANI),J .db/2 Powered by TCPDF (www.tcpdf.org)